

**JUSTIFICATION AND APPROVAL  
FOR OTHER THAN FULL AND OPEN COMPETITION, PRICE JUSTIFICATION (JOFOC)  
ACQUISITION OF HOTEL ACCOMMODATIONS IN SUPPORT OF SENIOR HIGH LEVEL USG  
VIP VISIT**

**1. I recommend that the Department of State use other than full and open competition** for the acquisition of hotel rooms and offices for this VIP visit. The estimated cost is 612,969.17 € all taxes included or US \$ 630,090.00 with a not to exceed amount of 796,859.92 € all taxes included or US \$ 821,100.00.

**2. Nature and/or description of the action being approved.**

Senior High Level USG Principal traveling with a delegation inclusive of support elements in: Security, Communications, Logistics and Operations.

**3. A description of the supplies or services required to meet the agency's needs.**

The contractor is the Grand Hotel Intercontinental Paris which is providing hotel rooms, and offices in support of this senior high-level USG VIP visit to Paris, France.

**4. An identification of the statutory authority permitting other than full and open competition.**

**[ X ]    41 U.S.C. 253 (c) (2), FAR 6.302-2; Unusual and Compelling Urgency; (Based on the available time and urgency of the requirement as detailed below)**

Security concerns prohibit sufficient advanced notification of VIP travel to allow for sufficient time to conduct full and open competition. The Department of State can only communicate with the staff at Posts abroad when authorization is given due to security concerns. They have an extremely short turnaround time when authorization has been granted for negotiations to commence and site selections to be finalized with both the local vendors and Posts before the actual Senior High Level USG VIP visit occurs. Security and logistical teams make determinations during the site survey as to which hotels are most suitable for the Senior High-Level USG VIP and his traveling staff to remain overnight. Consideration of the Senior High Level USG Principal and the location are taken into consideration as a determining factor.

The types of events, meetings, locations and availability of venues to support the Senior High-Level USG VIP and the delegation are often times designated by the host countries.

Unique requirements for communications support are under severe time limitations and always a determining factor in the selection process as its capacity to be augmented to the unique requirements necessary to support certain Senior High Level USG Principals.

Many of the arrangements for hotels are often not confirmed until just before the actual visit. In addition to supporting a large delegation within a short time frame, last minute and frequent changes of itineraries for supporting personnel often result in significant changes in how Posts work with the vendors. With the exception of a few trips, contracts are not permitted to be signed until the Department of State (Post) has written confirmation from all supporting agencies, which enables collection of funds from said agencies in the event of cancellation. This results in an unusual and compelling urgency in accordance with 41 U.S.C. 253 (c) (2), FAR 6.302-2.

The number of accommodations required to satisfy USG needs is not available from any other vendor. The contract must be awarded as soon as possible in order allow sufficient time for the selected contractor to prepare and dispatch each individual/U.S.G. employee in the selected hotel.

These unique Senior High Level USG VIP travel requirements result in only a single or a very limited number of responsible sources with no other supplies or services capable of satisfying agency requirement in accordance with 41 U.S.C. 253 (c) (2), Far 6.302-2.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Security and logistics are the Department of State's primary considerations when procuring hotel rooms. The Department of State must be able to provide a safe and secure environment for VIP visitors. Frequently VIP visits are not announced or confirmed in sufficient time to conduct a competition, creating an urgent and compelling need. At other times, the security requirements and/or requirements of the host country government limit the acquisition to one or a small number of predetermined hotels.

☒ The VIP visit information was not available in sufficient time thereby creating an urgent and compelling need.

☐ The host country government requires the use of this/these hotel(s).

☒ The proposed contractor has the following unique qualifications which meet the Department of State's security and logistical requirements.

☐ Set-back (hotel is safe distance from the street)

☒ Location (able to secure building, travel route; distance to and from event)

- ☒ Size and number of rooms (able to house everyone in one hotel)
- ☒ Conference facilities (adequate space for meetings, press conferences)
- ☒ Communications (able to install equipment/lines, command center)
- ☐ Accommodating to security needs

**6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.**

Due to urgency and exception in FAR 25.401(a)(5) this solicitation cannot be posted but the JOFOC will be published in SAM.GOV.

The following other hotels were reviewed but were not adequate because of the following:

Market research has shown that there is currently a shortage of hotels rooms available in Paris in February 2025 due to the large number of foreign and domestic officials attending the event. Other hotels such as the Hotel Sofitel Paris Arc de Triomphe and the Hotel du Collectionneur were reviewed but none of them have the necessary infrastructure and cannot provide the number of rooms to support US Government requirements.

**7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.**

Procurement looked on the Booking.com website for hotels of the same category proposing accommodation in single rooms, junior suites and suites on February 3, 2025. The results are as follows:

- Grand Hotel Intercontinental Paris – The total estimated amount for 154 rooms / junior suites and suites for an estimated number of 1,087 room nights of accommodation and use of offices is 612,969.17 € incl. all taxes
- The Hotel Sofitel Arc de Triomphe – The total estimated amount for 154 rooms / junior suites and suites for an estimated number of 1,087 room nights of accommodation and use of offices is 628,733.06 € incl. all taxes
- Hotel du Collectionneur – The total estimated amount for 154 rooms / junior suites and suites for an estimated number of 1,087 room nights of accommodation and use of offices is 699,693.06 € incl. all taxes

**Contract #19FR6325D0015**

The Hotel Sofitel Arc de Triomphe, and the Hotel du Collectionneur do not have the availability of rooms that is required for this visit contrary to the Grand Hotel Intercontinental Paris. The prices quoted by the Grand Hotel Intercontinental Paris for the different categories of suites are in line with the ones available in other 5\* hotels in Paris during this specific time frame.

**8. Any other facts supporting the use of other than full and open competition.**

None.

**9. A listing of sources, if any, that expressed, in writing, an interest in the acquisition.**

None.

10. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

None.

### CERTIFICATIONS

I certify that the information in this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition to the best of my knowledge and belief.

February 5, 2025

Date:



Phong C. Ngo  
Director A/PTS

I certify that this justification is accurate and complete to the best of my knowledge and belief. Based on my assessment, I conclude that other than full and open competition is justified, and the proposed price is fair and reasonable.

Feb. 5, 2025

Date:



Stanislas Parmentier  
Contracting Officer

As the Competition Advocate at post, I approve this justification:

Feb. 5, 2025

Date:



Mikael C. McCowan  
Management Officer